

INDUSTRIAL COURT OF QUEENSLAND

CITATION: *Neale v Workers' Compensation Regulator*
[2023] ICQ 017

PARTIES: **Neale, Ian**
(Appellant)

v

Workers' Compensation Regulator
(Respondent)

CASE NO: C/2023/6

PROCEEDING: Appeal against decision of Workers'
Compensation Regulator

DELIVERED ON: 10 August 2023

HEARING DATE: 15 May 2023

MEMBER: O'Connor, VP

HEARD AT: Townsville

ORDER: **Appeal is dismissed.**

CATCHWORDS: WORKERS' COMPENSATION -
PROCEEDINGS TO OBTAIN
COMPENSATION - APPEAL AGAINST
DECISION OF WORKERS'
COMPENSATION REGULATOR - where
appellant filed appeal against review decision
of the Respondent - where Queensland
Industrial Relations Commission (QIRC)
confirmed decision of the Respondent -
where appellant appealed to the Industrial
Court of Queensland (ICQ) - where appellant

sustained an injury within s 32(1) of the *Workers' Compensation Act 2003* - where the Commissioner found that the management action taken was reasonable and taken in a reasonable way - where Commissioner found injury excluded by virtue of operation of s 32(5)(a) of the *Workers' Compensation Act 2003* - whether Commissioner erred in finding management action reasonable - where relevant stressors relied upon by the appellant to contend management action was unreasonable in the way his workplace stressors were dealt with - where appellant challenging Commissioner's findings and the evidence relevant to each stressor - whether alleged errors of law - whether alleged errors of fact - appellant has not identified any error in Commissioner's reasoning process - determined appeal be dismissed.

LEGISLATION:

Workers' Compensation and Rehabilitation Act 2003, s 32, s 561

CASES:

Alex Sabo AND Q-COMP (C2010/46) - Decision <http://www.qirc.qld.gov.au>
Davidson v Blackwood [2014] ICQ 8
Davis v Blackwood [2014] ICQ 9
Fox v Percy (2003) 214 CLR 118
Gambaro v Workers' Compensation Regulator [2017] ICQ 5
Mater Misericordiae Health Service Brisbane Ltd v Q-Comp (2005) 179 QGIG 144
Neale v Workers' Compensation Regulator [2023] QIRC 009
Shaw v Workers' Compensation Regulator [2022] ICQ 024
Turay v Workers' Compensation Regulator [2023] ICQ 013

APPEARANCES:

Mr I. Neale, the Appellant in person.

Mr S.A. McLeod, KC directly instructed by the Workers' Compensation Regulator.

Reasons for Decision

- [1] On 6 February 2023 Mr Ian Neale ('the Appellant') filed an appeal against a decision of the Queensland Industrial Relations Commission ('the Commission').¹ The Appellant appealed a decision of the Workers' Compensation Regulator ('the Respondent') dated 22 June 2021, which confirms a decision of WorkCover Queensland on 7 October 2020 to reject his application for compensation for a personal injury in accordance with s 32 of the *Workers' Compensation and Rehabilitation Act* 2003 (Qld) ('the WCR Act').
- [2] On appeal to the Commission, it was not in dispute that the Appellant suffered a personal injury within the meaning of s 32(1) of the WCR Act. The controversy between the parties was whether the injury was removed from the operation of s 32(1) by virtue of the provisions of s 32(5) of the WCR Act.

- [3] The Grounds of appeal are as follows:

I believe that the Commissioner has erred on various findings. I feel that evidence was not looked at in full for the decisions given. Please find attached a schedule. It relates to each paragraph of the Commissioner's decision where in my view evidence was not full [sic] recognised.

- [4] Specific headings set out within the schedule are as follows:

- the medical evidence;
- WHS complaint: the appellant's complaint against John Forde;
- allocation of work tasks and Road Crash Rescue (RCR);
- other matters relating to tasks allocated to Mr Neale;
- Palm Island trip;
- community engagement trailer;
- the storm damage project;
- management action regarding allocation of work tasks and oversight of projects was reasonable;
- course attendances;
- course feedback;
- the failure to place Mr Neale on a performance improvement plan and Mr Neale's performance generally;
- arranging quotes for signage;
- preparation of presentation and costings;
- meetings of 29 July and 6 August 2020;
- Mr Neal's hernia condition;
- bullying and harassment;
- Mr Neale's demeanour; and

¹ *Neale v Workers' Compensation Regulator* [2023] QIRC 009.

- matters outside the scope of this appeal.

- [5] The Respondent submits the Appellant challenges the Commission's findings on the evidence relevant to each stressor and that the Appellant's complaint is no more than a dissatisfaction with the decision as a whole; that no error has been identified to warrant any of the Commission's findings being set aside and that the appeal should be dismissed.²
- [6] The right of appeal³ is granted pursuant to s 561 of the WCR Act which provides as follows:

561 Appeal to industrial court

- (1) A party aggrieved by the industrial magistrate's or the industrial commission's decision may appeal to the industrial court.
 - (2) The *Industrial Relations Act 2016* applies to the appeal.
 - (3) The appeal is by way of rehearing on the evidence and proceedings before the industrial magistrate or the industrial commission, unless the court orders additional evidence be heard.
 - (4) The court's decision is final.
- [7] The onus is on the Appellant to identify the alleged errors of law and/or alleged errors of fact.⁴
- [8] As the Appellant is self-represented reference is made to *Gambaro v Workers' Compensation Regulator*⁵ where Martin J considered whether the content of the Appellant's application reveals an arguable case. His Honour wrote:

The usual consequence of an appeal not complying with the rules in cases such as this one would be to set it aside. To set aside an appeal, however, does not necessarily prevent an appellant from continuing the appeal. A finding that the grounds of appeal are not stated concisely is not one which necessitates a finding that there is no arguable case. Indeed, where an appellant has an arguable case on appeal, they should not be denied the opportunity to have their case heard for mere noncompliance with the rules if appropriate amendments can remedy the situation.

In some cases, though, a more appropriate course of action may be to dismiss the appeal. As Keane JA explained in *Robertson*:

'It would be quite wrong for this court to promote the furtherance of a pointless appeal by allowing the amendments to the notice of appeal to stand. Justice and mercy both require that leave to amend the notice of appeal be refused and the notice of appeal be struck out.'

Where a party is unrepresented, a court should be reluctant to dismiss an appeal that is defective only because of the appellant's inability to clearly articulate the grounds of an appeal. Further, applications to summarily dismiss an appeal should not be encouraged where that would amount to an interlocutory determination of the substantive appeal. However, appeals ought to be

² Respondent's submissions filed 6 April 2023, [4], [57].

³ *Turay v Workers' Compensation Regulator* [2023] ICQ 013, [78].

⁴ *Shaw v Workers' Compensation Regulator* [2022] ICQ 024, [29].

⁵ [2017] ICQ 5.

dismissed where no arguable ground of appeal is raised. Rule 226 allows an examination of the notice of appeal for this purpose where there has been a failure to comply with the rules.

As such, it is appropriate to examine each of the appellant's ground of appeal to determine whether the notice reveals an arguable case.⁶ (citation omitted)

[9] To support his contention that he does not agree with the decision, in oral submissions the Appellant stated, 'I don't feel that all of the evidence has been entirely looked at'.⁷ In addition to the grounds covered in his appeal, the Appellant sought to include three further issues:

- blue cards;
- purchase of battery charger; and
- search and rescue certificate.⁸

[10] The Appellant was employed by Queensland Fire and Emergency Services ('QFES') as an Occupational Capability Officer ('OCO') in the Emergency Management, Volunteerism and Community Resilience Division. As a trainer/assessor for QFES the Appellant reports 'to the senior operations capability officer, who reports to the air controller, who reports to the regional manager'. The Appellant said he had been doing that job for seven years.⁹

[11] Due to bullying and harassment from the area controller the Appellant applied for workers' compensation. The area controller was constantly tasking him with jobs verbally; continually calling him into the office daily over performance management and kept various file notes on a broad range of things. A lot of these issues occurred as a result of the 2019 Townsville flood.¹⁰

Medical evidence

[12] In his oral submissions the Appellant contended that in respect of the medical evidence, '[t]his has not even been a factor in the Commissioner's decision. It has shown my mental state at the time I left (which obviously wasn't good), and after, due to the constant bullying from Forde.'¹¹

[13] The Appellant went on to submit the following evidence from Dr Gonzalez shows the injury was an adjustment disorder with exacerbation, and anxiety/depressive disorder and what his condition was when first presented:

... your first consultation on the 13 of August 2020 - you presented - yes - I would say in quite mental distress with insomnia, quite agitated, angry - we did a mental examination there and you

⁶ *Gambaro v Workers' Compensation Regulator* [2017] ICQ 5, [15]-[18].

⁷ TR1-3, L25.

⁸ TR1-4, L10; TR1-5, L10, L41.

⁹ TR1-6, LL7-16.

¹⁰ TR1-6, L26-TR1-7, L8.

¹¹ Appellant's submissions filed 10 March 2023, [3].

scored quite high on anxiety depression. You were - taken on drinking alcohol excessively at the time. That was all recorded there.¹²

- [14] The Appellant's treating Psychologist, Mr Shayne Pattie when asked what condition the Appellant presented on his first consultation, stated:

So during the - the initial session, you presented with low mood, restricted aspects and high anxiety.¹³

- [15] And when asked if the Appellant had discussed with him everything that happened to bring on that disorder, Mr Pattie responded:

Yeah. So you discussed the relevant workplace bullying and the impacts it had on your functioning.¹⁴

- [16] As to how he felt that the sessions had gone, Mr Pattie said:

So I've seen you for 21 sessions from the 2nd of 10th 2020. I - I feel during sessions you report honestly and consistently. I feel you at least attempt - I think 95 per cent would be a good estimate of the recommended tools or homework, as you called it earlier¹⁵

- [17] Mr Pattie provided the following response in relation to whether there had been fluctuations in the Appellant's mental state since his first session and whether there had been improvement to the present time:

Yeah. So I do believe there was fluctuation, however, I do believe overall there has been slight improvement. So using the prior discussed biopsychosocial model for health, I feel that even though social interaction is still lower than it was prior to October 2020, I feel there has been some effort and improvement here, where you have reported that you have been able to contact at least one support person to talk with, despite the relationship breakdown. Psychologically, I feel you have been able to at least attempt goals regarding self-care such as trying to put fishing back onto the priority list, which is important for your psychological health. And physically, you have reported that you have tried to lessen tobacco use and tried to eat enough. So I feel that using that model for health, there has been some improvement and, yes, there has been fluctuations during sessions.¹⁶

- [18] The Appellant's contention that the medical evidence was not considered in the Commission's decision is incorrect. The report of Dr Martin Gonzalez, and the nature of the Appellant's medical condition were documented in the decision together with the evidence of his Psychologist, Mr Pattie.¹⁷

- [19] What is argued by the Respondent is that, for the purposes of s 32(1) of the WCR Act it was admitted that the Appellant sustained an injury. The secondary issue and indeed

¹² Appellant's submissions filed 10 March 2023, [4]; Exhibit 89 - Report of Dr Martin Gonzalez.

¹³ TR7-10, LL46-47.

¹⁴ TR7-11, LL1-3.

¹⁵ TR7-14, LL9-12.

¹⁶ TR7-14, LL18-29.

¹⁷ *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [4], [5].

the only question before the Commission was whether for the purposes of s 32(5)(a) of the WCR Act, a disorder arose out of or in the course of reasonable management action taken in a reasonable way. That is the issue that was addressed by the Commissioner.¹⁸

[20] No error has been disclosed.

WHS complaint - Appellant's complaint against John Forde

[21] There were a number of stressors the Appellant attributed to the conduct of Mr John Forde, his superior in the workplace, as well as the ongoing complaint of bullying and harassing.¹⁹

[22] The Appellant contended that Mr Forde directed him and others to undertake tasks he believed were putting personnel at risk. The Appellant subsequently lodged a complaint against Mr Forde. The Appellant claimed:

APPELLANT: That the Commissioner's believed the stories given by witnesses over the witnesses that were onsite, including myself, with the three other witnesses being Ms Jessica Eadie, the strike team leader who was asked to do mop-ups, washouts - so the washouts and mop-ups.

HIS HONOUR: Yes.

APPELLANT: The other one was Mr McIntosh.

HIS HONOUR: Yes.

APPELLANT: He was - he confirmed he was there to do clean-outs and washouts. Do I - do you want the T5 line numbers for all of this?

HIS HONOUR: No. Don't worry. I've got it in her reasons for decision, where she talks about the evidence - - -

APPELLANT: Yep.

HIS HONOUR: - - - of Ms Eadie. That's at - starts at paragraph 27, I think, and then it goes on to Mr McIntosh at 29. So whereabouts - - -

APPELLANT: And the other one was - was Mr Scully.

HIS HONOUR: Yes.

APPELLANT: The Commissioner's used a completely different line from him.

HIS HONOUR: But was that - - -

¹⁸ *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [6]-[8].

¹⁹ *Ibid*, [20]-[68].

APPELLANT: But Mr - - -

HIS HONOUR: It was in evidence - was in the transcript of evidence.

APPELLANT: Yes.

HIS HONOUR: Yes.

APPELLANT: Yes.

HIS HONOUR: Yes.

APPELLANT: Mr Scully responded, when asked:

Do you know what the task entailed?--- Well, it wasn't clear as such.

His words were somewhere in the line:

We need an SES presence there. We need to be seen to be helping clear out these houses and so forth while the media and premier were not there - while me and the premier were there.

Which is also confirming to do clean-outs and washouts. And the Commissioner - - -

HIS HONOUR: And that was an issue for you, wasn't it, the clean-outs and washouts?

APPELLANT: Yeah - we were - we were sent there with no equipment to do the job - - -

HIS HONOUR: Yes.²⁰

[23] In relation to paragraph [21] of the decision, the Appellant said, 'I was unhappy with the way the complaint was handled'. However, the Appellant then agreed he didn't take issue with that paragraph as that was his view at the time.²¹

[24] The Appellant took issue with paragraph [33] which referred to the management action in relation to the complaint about Mr Forde. The Respondent said the Appellant was concerned 'with the fact that as they were cleaning the houses, the washouts, there wasn't appropriate protective equipment: masks, wash facilities ... toiletry facilities ... and about workers being properly fed on the day'.²²

[25] The complaint was investigated by Mr Camp and the Appellant's principal complaint was that a CaPE²³ one complaint should have been done within 28 days. Due to difficulty arranging a time for the Appellant and Mr Camp to meet as it was a busy part

²⁰ TR1-10, L41-TR1-12-L2.

²¹ TR1-12, L31-TR1-13, L7.

²² TR1-13, L20-TR1-14, L5.

²³ Conduct and performance excellence ('CaPE').

of the year especially following the recent floods in Townsville and then the Appellant went on leave, the investigation was finalised in November.²⁴

[26] Another issue raised by the Appellant was that Mr Camp had appointed Mr Forde, who was the subject of the complaint, to interview the Appellant. The Commission accepted Mr Forde's evidence as to what instruction he gave the Appellant and that he did not place the team at risk. The findings by the Commission revealed 'it was reasonable for Mr Camp to determine the complaint unsubstantiated and to inform Mr Neale of this'.²⁵

[27] The Appellant disputes the Commission's finding in paragraph [67] of the decision:

I do not accept that Mr Camp tasked Mr Forde with investigating the complaint or conducting an investigation interview or fact-finding with Mr Neale.²⁶

[28] The finding was open to the Commission and no error in the decision has been demonstrated.²⁷

Allocation of work tasks and Road Crush Rescue (RCR)

[29] The Appellant was tasked to undertake an RCR audit in relation to Greenvale; Pentland; Charters Towers and Ravenswood by 8 November 2019. The timeframe was ultimately extended to 28 November 2019 as the Appellant did not have the required information.²⁸

[30] In his oral submissions the Appellant said:

APPELLANT: So with 73, on that, Mr Neale did not have any evidence to support this assertion. That's my main problem. I don't have any evidence of that, because all of Mr Ford's meetings are verbal: can you attend a meeting? And it's - when he says that, it - it's more or less drop everything, come in and see now.

HIS HONOUR: Well - so what's suggested in 73, that your complaint with regard to that matter was that you were pinged for incorrect information appearing in the audit - - -

APPELLANT: That is correct.

HIS HONOUR: Okay. And then the Commissioner then says that, well, you didn't have any evidence to support that.

APPELLANT: That is correct. Which is what I've been saying all along: I haven't got that evidence.²⁹

²⁴ TR1-14, LL22-47; *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [65].

²⁵ *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [64].

²⁶ Appellant's submissions filed 10 March 2023, [19].

²⁷ Respondent's submissions filed 6 April 2023, [13].

²⁸ *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [70]-[71].

²⁹ TR1-29, LL31-46.

[31] The Appellant agreed that even though he was called into another meeting, face-to-face with Mr Forde he had nothing and no evidence to support his attendance or what he said there.³⁰

[32] The Respondent submits that when Mr Camp undertook a review of the information relating to Pentland, aspects of the information were incorrect, and the Appellant was requested to obtain the correct information.³¹

[33] The Commissioner found at paragraph [79] of the primary decision that:

[79] I am unable to find that there is anything at all that was unreasonable about Mr Neale being required to ensure that correct and complete information was included in the audit. It was entirely reasonable for Mr Camp to identify an error and for him to ask Mr Forde to request that Mr Neale address that.

[34] There was nothing unreasonable about Mr Camp identifying an error and for him to ask Mr Forde to request the Appellant to address that.

[35] In his submissions the Appellant said Mr Forde has fully blamed him for the Pentland audit being incorrect by two items and that he did not do the initial audit. He said the only one in dispute for RCR was Pentland which was completed by Andrew Jager and not himself.³²

[36] The Respondent submits the Appellant's complaint is misconceived and that Mr Camp and Mr Forde were simply doing their jobs and it was for the Appellant to provide the correct information.³³

Other matters relating to tasks allocated to the Appellant

[37] In referring to paragraph [86] of the decision, the Appellant states as follows in relation to undertaking the type of work he was allocated:

It very was much my workload that was given and the work allocated. Doing costings, working out budgets, things like that, working out KPIs, that's not in an OCO's role description. We're there to deliver training. When you go to the senior operating capability officer, the SOCO or the area controller's position, managing budgets is part of their job description.

HIS HONOUR: Yes. Okay.

APPELLANT: Yet that's what they wanted us to do, and, yeah, we're just not trained to do that stuff.³⁴

³⁰ TR1-30, LL17-47.

³¹ Respondent's submissions filed 6 April 2023, [16].

³² Appellant's submissions filed 10 March 2023, [29]-[31]; WC/2021/123 - TR4-98, LL8-46.

³³ Respondent's submissions filed 6 April 2023, [17].

³⁴ TR1-36, LL38-47.

[38] The Respondent submits the Appellant contends that various work tasks allocated to him were outside of his job description. The Appellant fails to articulate how the Commissioner has erred in finding, '... I have not identified any task Mr Neale was asked to undertake which I consider to be inappropriate given his role'.³⁵

[39] This ground fails.

Palm Island trip

[40] The Appellant states that it was not his job as an OCO to ensure all the State Emergency Service ('SES') Units comply with new QFES policy in relation to the requirement to have a Blue Card.³⁶ He was unhappy with the length of time arranged for him being three days as he believed everything could be done in one day including the transportation and accommodation issues.³⁷ Further, that Mr Forde wanted him to personally go around and see the people which the Appellant claims 'we don't do it here in Townsville'.³⁸

[41] The Respondent said that while there might have been a problem with transport this was ultimately sorted out and the Appellant went to Palm Island.³⁹

[42] Further, the Respondent states:

the fact that he spent one day there instead of three wasn't apparent, but Mr Forde was of the view that the job wasn't completed. And if he had stayed on there for the three days, the job might've got completed.⁴⁰

[43] After considering the evidence before her, the Commissioner determined, as she was entitled to do, the following:

[93] I agree with the Respondent's submission that it is not apparent what arises from these matters and what the nature of the complaint about the Palm Island trip is. Mr Neale may have held a different view about how long the trip would take and may have held an expectation that travel would be organised for him. However, there is no evidence that Mr Neale sought to raise a complaint about the length of the trip and it appears that the travel ended up being organised. There is nothing unreasonable about the action of requesting Mr Neale to attend Palm Island or evidence that this action was undertaken in an unreasonable way.⁴¹

³⁵ *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [86]; Respondent's submissions filed 6 April 2023, [19].

³⁶ Appellant's submissions filed 10 March 2023, [33].

³⁷ TR1-37, LL3-14.

³⁸ TR1-39, LL9-14.

³⁹ TR1-37, LL46-48; *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [91], [93].

⁴⁰ TR1-68, LL16-18.

⁴¹ *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [93].

[44] I accept the submissions of the Respondent that the Appellant's contentions in relation to the transportation and accommodation at Palm Island show no error in the Commissioner's findings.⁴²

[45] In respect of the Blue Card applications the Appellant accepted in cross-examination that he could have raised such issues with Mr Forde but did not do so and could provide no explanation why he did not raise these matters.⁴³

[46] It is not in dispute that the Appellant was asked by Mr Forde to undertake a number of tasks over and above the Blue Cards. In cross-examination, Mr McLeod asked the Appellant:

So even though your evidence is that's a controller's job, not yours, you were more than happy to comply with Mr Forde's request to undertake those tasks that he requested you to do when you were on Palm Island?---Yes.⁴⁴

[47] The conclusions reached by the Commissioner disclose no error.

Community engagement trailer

[48] This matter was dealt with in paragraphs [96]-[100] of the decision. The Appellant's contention is that he was 'constantly hounded' by Mr Forde as to obtaining quotes for the project. He said that Mr Forde would 'continually be in my face' and that he was constantly given tasks that far exceeded his role description and this was not reasonable.⁴⁵

[49] The Appellant said:

... [h]e's given it to me, then when it was all finalised, and getting built, took me off the project, so at the end he's the one that got it all built. He's the one - yeah, it's his name on it.⁴⁶

[50] There were a number of projects the Appellant said he started and would get them near completion then he would get pushed aside and Mr Forde would take over as though he put it all together and did all the work. The Appellant considered that unreasonable.⁴⁷

[51] The Respondent submits that despite the Appellant's contention that obtaining quotes was not his job, he did not take this matter up with Mr Forde because 'we work as a team'.⁴⁸

[52] Having regard to this and the evidence of Mr Forde, the Commissioner held that it was not unreasonable for Mr Forde to task the Appellant to obtain quotes nor his constant

⁴² Ibid, [90]-[93]; Respondent's submissions filed 6 April 2023, [22].

⁴³ *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [90].

⁴⁴ TR4-43, LL19-21.

⁴⁵ Appellant's submissions filed 10 March 2023, [35]-[37].

⁴⁶ TR1-40, LL22-24.

⁴⁷ TR1-41, LL18-35.

⁴⁸ TR4-24, LL40-42.

checking on the progress of the quotes or tasking the Appellant with undertaking the initial work on the project.⁴⁹

[53] No error has been identified in the reasoning of the Commissioner.

The storm damage project

[54] In paragraph [101] of the decision the Appellant contends the Commissioner believed Mr Forde's version of events that it was his idea to get the storm damage project built to be used for training purposes. The Appellant said Mr Forde had nothing to do with it and that he had already built the other two training projects in work time.⁵⁰

[55] The Appellant refers to paragraph [104] of the decision stating Mr Forde put in place a date for completion of the project and claims, 'he was again bullying me on my own project? To get into my face again'.⁵¹

[56] It was common ground that one of the reasons why the storm damage project took some time to be completed was due to the need to source a particular type of window.⁵²

[57] The Respondent submits the Appellant was dissatisfied with the Commissioner's findings and critical that the evidence of Mr Forde was preferred.⁵³ However, the Commissioner was unable to establish any unreasonableness in relation to the storm damage project.

[110] Having considered the evidence regarding the storm damage project, I am unable to identify any unreasonable management action. It appears that a decision was made that Mr Neale would undertake the storm damage project. Mr Neale agrees that the project dragged on and that there were significant delays in securing the particular window he wanted to use on the project. It was entirely reasonable for Mr Forde to seek updates on the project and to express to Mr Neale that there was an expectation that the project would reach completion. Mr Neale may have held a view that it was his 'own project' to be completed in his 'own time', but it was a work project and was being completed in work time. Mr Forde informed Mr Neale that the ongoing failure to work within timeframes may lead to a report to the Workplace Conduct Officer, however there is no evidence that this ever occurred or that Mr Neale raised a concern with Mr Forde about the fairness or otherwise of such a proposed action. It appears that the project was finally completed, Mr Neale suffered no adverse consequence for the delays and Mr Forde thanked him. Mr Neale may have a view that he was being hounded or treated unfairly or that the email thanking him was designed to 'get inside' his head, but I am unable to establish any unreasonableness in relation to the storm damage project.⁵⁴

⁴⁹ Respondent's submissions filed 6 April 2023, [26]; *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [100].

⁵⁰ Appellant's submissions filed 10 March 2023, [38].

⁵¹ *Ibid*, [40].

⁵² Respondent's submissions filed 6 April 2023, [27].

⁵³ *Ibid*, [30].

⁵⁴ *Neale v Workers' Compensation Regulator* [2023] QIRC 009.

- [58] Nothing in the submissions of the Appellant raise any error in the way the Commissioner dealt with the evidence before her or the conclusions reached by her.

Management action regarding allocation of work tasks and oversight of projects was reasonable

- [59] The Appellant complains about the manner in which enquiries were constantly made on a daily basis and he was tasked to do jobs far above his pay grade. He questions how reasonable that can be.⁵⁵

- [60] I accept that the Commissioner found there was no basis to support the Appellant's complaint nor was any error identified in reaching this finding.⁵⁶

Course attendances

- [61] The Appellant agreed he had restrictions placed upon him because of his hernia however he argues he could have delivered the courses⁵⁷ working under those restrictions, but Mr Forde took him off them.⁵⁸

- [62] The evidence before the Commission revealed that the courses did not go ahead because of COVID-19 or insufficient numbers and the Appellant was removed from participating as it was unsafe due to his hernia condition.⁵⁹

- [63] The findings of the Commissioner that were made were supported by the evidence.

Course feedback

- [64] As the lead trainer in a course around November 2019, the Appellant provided his own feedback/suggestions about the course directly to State Operations. He did not raise any concerns with either Mr Forde or Mr Swan about the process for providing feedback/suggestions as he stated there were no processes in place.⁶⁰

- [65] The Commissioner specifically found:

[124] I have considered the evidence and submissions regarding this aspect of Mr Neale's appeal. It appears that Mr Neale did not follow the correct process for provision of feedback and that Mr Forde had a conversation with him to inform him of the expectation. In the event that the correct process was followed and Mr Forde was mistaken, there is no evidence that Mr Neale sought to clarify this. There is nothing unreasonable in this action taken by Mr Forde. I note Mr Neale's submission that the conversation with Mr Forde about this direct

⁵⁵ Ibid, [111] and [112]; Appellant's submissions filed 10 March 2023, [42].

⁵⁶ Respondent's submissions filed 6 April 2023, [32].

⁵⁷ *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [115].

⁵⁸ TR1-45, LL1-3.

⁵⁹ Respondent's submissions filed 6 April 2023, [34].

⁶⁰ Appellant's submissions filed 10 March 2023, [45]; Respondent's submissions filed 6 April 2023, [35].

communication with State occurred 'with no notification' or 'opportunity to bring a support person'.⁶¹ There is no evidence before me that there was a need for a formal meeting or a support person to be present for Mr Forde to check in with Mr Neale about the correct process for provision of feedback to State.

[66] It was open for the Commissioner to determine as she did.⁶² No error has been disclosed.

The failure to place Mr Neale on a performance improvement plan and Mr Neale's performance generally

[67] Although he was constantly being told his work performance was poor, the Appellant took issue with the failure in management to put him on a Performance Improvement Plan (PIP). He said:

HIS HONOUR: Right. Okay. So what is your issue there, for not being put on a PIP? I thought that would be in your best interests, wouldn't it, not to be put on one?

APPELLANT: Co - yeah, co - constantly being told that your work performance is poor, it - you're not doing your job, you're not doing timelines, when there were no timelines - - -

HIS HONOUR: So when you told me earlier you're not doing your job correctly or whatever, it wasn't that you were put on a PIP then, it was that if they're suggesting that, you ought to have been put on one.

APPELLANT: I - I should have, yes. Because - - -

HIS HONOUR: You see, you mentioned earlier that you were called into the office - performance improvement, but you weren't formally put on a PIP.

APPELLANT: No, I wasn't. No.

HIS HONOUR: Okay. Got you.

APPELLANT: Because to go through that, as Mr Forde said, is - is - we all have to sit down and go through the process. This means it would have come out in the open that Forde was telling lies about me from his - all his previous conduct emails sent to Mr Camp and the - - -

HIS HONOUR: Yes.

APPELLANT: - - - senior advisor of workplace standards, and he would be called for being a bully, because the senior advisor of workplace standards has already questioned that in one of her emails. It's one of the end exhibits, 136 or 139 or something.

HIS HONOUR: Well, let's get down to the point. The point is that there was a finding that to not put you on the PIP wasn't unreasonable.

⁶¹ TR1-74, LL6-12; TR2-55, LL8-9, LL32-43.

⁶² *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [124]; Respondent's submissions filed 6 April 2023, [37].

APPELLANT: Well, if my work performance was so bad, as Mr Forde has said, then I should have. He's ev - he even said that he's had - in 134, that he had informal chats with Mr Neale. Yes, daily.

HIS HONOUR: Okay.

APPELLANT: That's what I've been saying all along. I've been constantly called into the office

HIS HONOUR: Yes.

APPELLANT: - - - over work performance, work conduct, work - - -

HIS HONOUR: But the view obviously was taken that it wasn't such that you ought to be put on a PIP.

APPELLANT: Well, that is the view.

HIS HONOUR: Yes.

APPELLANT: Yes.

HIS HONOUR: Okay.

APPELLANT: But if - - -

HIS HONOUR: And the Commissioner determined that that was not unreasonable.

APPELLANT: Yes. But if you go through all the emails that he sent to Mr Camp and - - -

HIS HONOUR: Yes.

APPELLANT: - - - the workplace conduct officer - with Mr Camp agreeing that yes, I should be put on a PIP, and it doesn't happen. Why?

HIS HONOUR: Okay.⁶³

[68] The evidence from Mr Forde in the Commission was as follows:

MR McLEOD: Right. And what – what would be undertaken first before actually getting to the stage where, in fact, an employee would be placed on a performance improvement plan?

MR FORDE: Well, there'd be a lot of steps taken in relation to initial discussions with the employee about, you know, what's gone wrong, what's right, provide some assistance, whether it's both internally or externally, some guidance, some retraining, whatever we can do to avoid a PIP process or the PIP process is what we try to do, and, as I said, the performance improvement plan would be a last resort where we'd tried and pretty much exhausted all our opportunities or avenues, and then we'd have to go down that road, but in

⁶³ TR1-46, L19-TR1-47, L49.

order for us to do that we need to consult all levels just to make sure we're on the right track.⁶⁴

[69] The Commissioner detailed in paragraphs [134] and [135] the evidence to support the Appellant's contention, however determined there was no evidence that the decision to not place the Appellant on a PIP was unreasonable management action.⁶⁵

[134] Ms Walker provided advice to Mr Forde, Mr Swan and Mr Camp on 10 December 2019 which advised them that there must be a preliminary discussion with an employee prior to moving to a PIP. Mr Forde's evidence was that he then had 'informal chats' with Mr Neale. Mr Forde said that ultimately, a decision was made not to place Mr Neale on a PIP because 'seven times Ian had stepped up. And as far as I was concerned, he was on the right track'.

[135] It appears to me that while at one point, there were discussions about whether it was appropriate for Mr Neale to be placed on a PIP, ultimately a decision was made that it was not necessary to do so. Mr Forde appears to have formed a view that his informal discussions with Mr Neale had led to improvement in Mr Neale's work performance. There is no evidence that the decision to not put Mr Neale on a PIP was unreasonable management action.

[70] As the above extract from the reasons for decision demonstrates, there was a clear basis for the finding of the Commissioner. No error has been demonstrated.

Arranging quotes for signage

[71] The Appellant contends that Mr Forde was constantly on a daily basis asking what's going on with these quotes. When the Appellant got them all and Mr Forde had received them, Mr Forde sent another email, '[i]s it exactly the same as what I wanted? ... [h]ave you done your job right?'⁶⁶

[72] The Respondent said the Commissioner dealt with this issue at paragraphs [138] and [139] of the decision to the effect it was not unreasonable for Mr Forde to ensure about what was being ordered and what the quote covered was correct.⁶⁷

[73] It was open on the evidence before her for the Commissioner to conclude that there was no unreasonable management action arising from this request.

Preparation of presentation and costings

[74] The Appellant was asked by Mr Swan on 16 March 2020 to prepare a presentation regarding unit KPIs for the shires of Palm Island, Flinders, Charters Towers and Richmond. In oral submissions, the Appellant said he asked Mr Forde to provide him

⁶⁴ TR9-24, LL37-46.

⁶⁵ Respondent's submissions filed 6 April 2023, [40].

⁶⁶ TR1-50, LL17-26; Appellant's submissions filed 10 March 2023, [50].

⁶⁷ Respondent's submissions filed 6 April 2023, [41].

with relevant information, but it was not a correct and updated report as there were items missing and this was proven correct.⁶⁸

[75] In his submissions the Appellant said OCOs are not trained to do budgets and costings; Mr Forde wants the costings to be correct for his presentation; and this was doing Mr Forde's job for him again.⁶⁹

[76] The Commissioner's reasons outline the evidence supporting the finding that the Appellant was not asked to undertake work tasks beyond his role. There was nothing unreasonable about the manner or supervision of the Appellant in relation to his work tasks.⁷⁰

[77] This ground must fail.

Meetings of 29 July 2020 and 6 August 2020

[78] The Appellant submits that a meeting took place on 29 July 2020 and 'three of us did attend that meeting'⁷¹ and refers to Exhibit 70 which is an undated and unsigned document prepared by him after the meeting of 29 July 2020.⁷²

[79] Mr Forde could not recall whether in fact a meeting took place on that date. The Commissioner accepted the Respondent's submissions about the 29 July 2020 meeting.⁷³

[80] In relation to the meeting on 6 August 2020, the Appellant states:

The Commissioner hasn't believed a word I've said. I walked into the meeting, there was three-piles of paper turned upside down. Mr Forde's read something out about the meeting, which a lot of it - some of it wasn't part of the meeting sent out in the email. Then he's put his hands, like this ... across the paper, saying, 'Which one do you want to do first?''⁷⁴

[81] The Appellant also refers to paragraph [177] of the decision and in particular where the Commissioner after considering all the evidence regarding the meeting on 6 August, agrees with the Respondent's summary of the matter. The Appellant claims the Respondent was not there, he was and his story has not changed.⁷⁵

⁶⁸ TR1-51, LL1-5.

⁶⁹ Appellant's submissions filed 10 March 2023, [52].

⁷⁰ Respondent's submissions filed 6 April 2023, [42].

⁷¹ Appellant's submissions filed 10 March 2023, [53].

⁷² Ibid, [54].

⁷³ *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [157]-[158].

⁷⁴ TR1-54, LL4-8.

⁷⁵ TR1-55, LL5-34.

[82] The Respondent submits that the Commissioner preferred the evidence of Mr Forde which differed from the Appellant's partial recollection and concluded there was nothing unreasonable about the matters discussed or the conduct of the meeting.⁷⁶

[83] No error has been demonstrated.

Mr Neale's hernia condition

[84] In late January 2020 the Appellant sustained a hernia injury. He submits that he did inform Mr Forde as to how he sustained the hernia even though Mr Forde denied that the Appellant told him the hernia was work-related.⁷⁷

[85] The Appellant disagrees with paragraph [200] of the decision and states that he was tasked with various jobs which exceeded his maximum lifting capacity, even though he did not do these tasks. He states there was a draft plan, and it was not implemented.⁷⁸

There is no evidence that Mr Neale was tasked with work that was outside of that that his doctor had cleared him for ...⁷⁹

[86] The Appellant challenges the Commissioner's reasons at paragraph [206] that the hernia was not work-related. He said it was and claims his doctor said he had done it at work and that he reported to Mr Forde he had a hernia and that he had done it at work.⁸⁰ In his view the actions of management were not reasonable or carried out in a reasonable way.⁸¹

[87] In the submissions of the Respondent, it is unclear what the Appellant's "true" complaint related to and what management did that was unreasonable. The Commissioner accepted that management proceeded on the basis that the hernia was not work-related and after considering all of the circumstances surrounding the hernia, concluded that the actions of management were reasonable.⁸²

[88] There was evidence before the Commissioner to reach the conclusion that she did. In making the finding that she did the Commissioner did not err.

Bullying and harassment

⁷⁶ *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [178]; Respondent's submissions filed 6 April 2023, [48].

⁷⁷ *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [183]; Appellant's submissions filed 10 March 2023, [61]-[62].

⁷⁸ TR1-58, L17.

⁷⁹ TR1-58, LL28-29.

⁸⁰ TR1-59, LL12-20.

⁸¹ Appellant's submissions filed 10 March 2023, [73].

⁸² Respondent's submissions filed 6 April 2023, [52]; *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [201].

[89] The Appellant claims he has been bullied in the workplace however the versions of events of others have been accepted over his and the facts are clear in the evidence. He questions why the medical evidence was not looked at.⁸³

[90] In oral submissions, the Appellant states: "[i]t was Mr Forde. He was riding me like a bike ... I haven't got evidence to say I've been called into all these meetings ... [i]t was all verbal ... he was constantly in my face ... day in".⁸⁴

[91] The Respondent submitted the Commissioner did not accept the Appellant's evidence of these allegations and accepted the evidence of others which did not support his recollection.⁸⁵

[92] The Commissioner determined that the Appellant was not subjected to bullying, harassment or unfairly treated or discriminated by Mr Forde.⁸⁶ In her reasons for decision, the Commissioner wrote:

[210] Mr Neale states that he was bullied in the workplace by Mr Forde.⁸⁷ It appears that the behaviours Mr Neale contends constituted bullying are those which have been explored at length in the evidence before the Commission and discussed above. This includes interactions between Mr Forde as manager and Mr Neale as a team member; formal and informal meetings; tasks provided to Mr Neale and feedback provided to him about his work tasks. I have found that these interactions and actions were reasonable and Mr Neale has not provided me with any evidence or specific details which demonstrate that Mr Forde was bullying him.

[93] This ground fails.

Appellant's demeanour

[94] The Appellant submits:

'How can you end up with a psychological disorder if it is not caused by unreasonable management action and bullying ... [t]he witnesses might not be able to prove the actions of management were not reasonable, but they do show that I have been bullied and discriminated against in the workplace, including my workload given."⁸⁸

[95] In his oral submissions, the Appellant said even other witnesses said the same thing:

APPELLANT: I'd voiced to them about my workloads and tasks. I've even got it in emails that I'm overworked and - yeah. And yet, all it shows is Mr Forde has been constantly on my back, sending emails to the senior adviser of workplace standards. There's evidence there on all the file notes on what I've done - - -
...

⁸³ Appellant's submissions filed 10 March 2023, [74].

⁸⁴ TR1-60, LL20-37.

⁸⁵ Respondent's submissions filed 6 April 2023, [53].

⁸⁶ *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [210]-[212].

⁸⁷ TR5-119, LL1-9.

⁸⁸ Appellant's submissions filed 10 March 2023, [76].

He's just picking bits out to call me - - -

HIS HONOUR: Yes.

APPELLANT: - - - into an office so he can be face to face. He's putting them in file notes to send to the - Daryl Camp, so, again, my name pops up. And now it's gone to the source - my name pops up, which then goes to the assistant commissioner. And, hello, I'm - before Mr Forde got there, there was nothing. There was none of that.

HIS HONOUR: Yes.

APPELLANT: Even my two other managers - they gave evidence they had nothing - no problems with my work whatsoever. I done my work - done it well until Mr Forde's turned up and then, suddenly, he's on my back and everything I do is wrong. "Come and see me." "Yeah. Righto." Another one, another one. Day after day, meeting after meeting - got told I've done something wrong.⁸⁹

- [96] In her written reasons, the Commissioner observed the Appellant was frustrated and dissatisfied with the management of him by Mr Forde and Mr Swan. After considering the evidence and the submissions of the Appellant, the Commissioner concluded:

[213] Mr Neale asked a number of the witnesses he called whether they could comment on any changes in his demeanour over the time in question or if they were aware that he was having issues in the workplace. I have considered the evidence of these witnesses and in particular the responses Mr Neale draws attention to from [310] to [320] of his submissions. It is not in dispute that Mr Neale sustained a psychological injury and that may have resulted in a change to his demeanour over time. It is also not in dispute that Mr Neale had frustrations and was very dissatisfied with Mr Forde's and Mr Swan's management of him. I do not find that the evidence of the various witnesses in this regard serves to establish that the actions of management were unreasonable.⁹⁰

- [97] Whilst the Commissioner noted that there was evidence from the witnesses called by the Appellant which supported his claim that he was frustrated and dissatisfied this did not, in her opinion, establish that the actions of management were unreasonable.⁹¹

- [98] Once again, the arguments advanced by the Appellant seek to draw a different conclusion from the same evidence. The conclusion drawn by the Commissioner was open to her and no error has been demonstrated in the reasoning which she used, nor that, in reaching the conclusion, she failed to take into account any relevant matter.

Matters outside scope of the appeal

- [99] As stated by the Commissioner, this appeal is not the forum for a "further investigation" of post-decompensation matters which are outside the scope of the appeal.⁹²

⁸⁹ TR1-61, LL8-35.

⁹⁰ *Neale v Workers' Compensation Regulator* [2023] QIRC 009.

⁹¹ Respondent's submissions filed 6 April 2023, [55].

⁹² *Neale v Workers' Compensation Regulator* [2023] QIRC 009, [214].

Three additional issues

[100] In relation to the three further issues, the first being the blue cards, the Appellant in oral submissions before the Court said:

APPELLANT: Well, ei - ei - 82:

I am unable to find anything unreasonable about a request from Mr Forde that Mr Neale simply pass on some information and a list of names to a contact on Palm Island. One hour, 45 minutes is not an unreasonable time frame.

It was more than just pass on the information; he wanted everything signed and back 5 within an hour, 45. I think the cut off was 12 o'clock that day or something like that that it had to be - well, it had to be at state. This had to be done weeks ago not on the final day, and he knows that there is a problem on Palm Island, and that's in an exhibit email somewhere.

HIS HONOUR: Well, the sort of background to it is at 81, and the conclusion's at 82.

APPELLANT: That's for that side of it. Yes.

HIS HONOUR: Yes. And that's the only thing you wanted to raise regarding the blue cards?

APPELLANT: Yeah.⁹³

[101] Later, the Appellant again referred to the blue cards during the course of his submissions as follows:

APPELLANT: "What's going on with the blue cards?"

HIS HONOUR: Yes.

APPELLANT: "I don't know."

HIS HONOUR: Yes.

APPELLANT: And then he give me the blue cards to look after. I knew nothing about it. There's emails there but, "No. I'm going to give it to you. You can look after them because you've got a hernia." There's - the email's there. I don't know - - -

HIS HONOUR: Yes.

APPELLANT: - - - what's going on. Then he says, "Make up a spreadsheet." "For what? Michelle's doing all that. You're doing all that. I've got nothing to do with it."

HIS HONOUR: Yes.

APPELLANT: It's just a constant one after the other.⁹⁴

⁹³ TR1-35, L47-TR1-36, L19.

⁹⁴ TR1-62, LL24-45.

[102] The Respondent said the Appellant was requested by Mr Forde to obtain the list of people who would be going to Palm Island and ascertain whether they had a blue card then report back to him within an hour forty-five or thereabouts. The Appellant said that was too short and inappropriate however "nothing flowed from the fact that Mr Neale couldn't comply with that request."⁹⁵

[103] In referring to the next issue, the Appellant said he was asked to purchase a battery charger. He stated:

APPELLANT: And the paperwork should've been filled out - - -

HIS HONOUR: Yes.

APPELLANT: - - - by Mr Forde - - -

HIS HONOUR: Yes.

APPELLANT: - - - because h's the only one - - -

HIS HONOUR: So Mr Camp should buy the battery charger?

APPELLANT: No. Mr Forde did.

HIS HONOUR: Okay.

APPELLANT: He's the one that fills out the paperwork. Only himself and Mr Camp, the regional manager, can sign off on them - - -

HIS HONOUR: Okay.

APPELLANT: - - - to say go and get them. I've gone and got it, we've got to enter it through Fraedom using our corporate card, and then I get a email from Mr Camp saying, "What's going on? Why have you gone out and bought this?" And I've just said "Mr Forde" and he said, "Well, I'll have to take it up with him," because I shouldn't have gone out and bought it. There's nothing - matches up there.

HIS HONOUR: All right. Was this - - -

APPELLANT: So - - -

HIS HONOUR: - - - an actual stressor, Mr McLeod, do you know?

MR McLEOD: Yes, it was.⁹⁶

[104] In response, the Respondent said when Mr Camp became aware that the Appellant had purchased the battery he questioned the purchase but at the end of the day it was all sorted. This melded in with the Appellant's more general complaints that a number of

⁹⁵ TR1-67, L39-TR1-68, L1.

⁹⁶ TR1-48, LL13-46.

tasks he was being tasked to do, mostly by Mr Forde, were not part of his job description. However, the Appellant conceded in cross-examination:⁹⁷

... that there would be a need for someone else to undertake a task because that person can't do the task themselves. People work as a team. There will be occasions that arise where everyone effectively, helps each other out. They assist each other. And part of working as a team involves people doing particular tasks that arguably might be outside of what they consider to be their job description role. But in order for the team to work sufficiently, those type of requests can be made, and people comply with the requests.⁹⁸

[105] The final issue the Appellant sought to include relates to the search and rescue certificate. The Appellant was under the impression that Mr Forde did not want him to get his Search and Rescue Mission Coordination (SARMAC) accreditation until he followed up with Mr Whitehead and told him exactly what happened in relation to the assessment activity booklet.⁹⁹

[106] Many months later the matter was resolved, and the Appellant received his accreditation.¹⁰⁰ The Respondent agreed with the summary of the circumstances by the Appellant and states the complaint was centred around Mr Forde and the perception of Mr Forde's involvement in the process of the Appellant not obtaining his accreditation.¹⁰¹

[107] The Commissioner, after considering the evidence before the Commission concluded:

[154] It was unclear to me on the basis of Mr Neale's evidence whether the fifth day was a compulsory component of the course. However, it is clear that Mr Neale made contact with Mr Whitehead, ended up participating in the subsequent training event Mr Whitehead conducted on a Sunday, that Mr Whitehead (not Mr Forde) was responsible for approving the accreditation and that Mr Neale eventually received an accreditation certificate.

[155] I am unable to identify anything unreasonable about the process of Mr Neale needing to follow up on the accreditation. I am certainly unable to establish that as alleged by Mr Neale, Mr Forde was involved in some kind of activity to stop Mr Neale from becoming accredited.¹⁰²

[108] The Respondent submitted that the reasoning process by the Commissioner showed there was no unreasonable management action in respect to the issue about the accreditation.¹⁰³

⁹⁷ TR4-65, LL19-33.

⁹⁸ TR1-68, LL41-49.

⁹⁹ TR1-52, LL16-34.

¹⁰⁰ TR1-52, LL16-18.

¹⁰¹ TR1-69, LL1-24.

¹⁰² *Neale v Workers' Compensation Regulator* [2023] QIRC 009.

¹⁰³ Ibid, [155].

[109] In respect of each of the additional matters raised by the Appellant, nothing has been asserted that would suggest that the Commissioner has fallen into error. These grounds also fail.

Conclusion

[110] The Commissioner took an orthodox approach to the consideration of the issues before her and correctly identified the task that she had to undertake. In the primary judgment she wrote:

[19] I do not intend to set out the evidence of each witness who attended the Commission. Instead, I approach the appeal by considering each of the named stressors put forward by Mr Neale and in doing so, determine if the action contended by Mr Neale actually occurred, and if it did indeed occur, consider whether it was reasonable management action taken in a reasonable way and therefore whether Mr Neale's injury is excluded by way of s 32(5)(a).¹⁰⁴

[111] There is substance in the Respondent's submission that the whole case revolves around the Appellant's views how things should or should not be done which clashed with the views of management.¹⁰⁵ What becomes apparent from reading through the transcript of the proceedings before the Commission, and the arguments advanced before the Court on this Appeal is that the Appellant's understanding of events did not always tally with reality.

[112] The proper task of the Commission is to assess the management action which was taken and determine whether it was reasonable and whether it was taken in a reasonable way.

[113] In *Sabo v Q Comp*, Hall P said the following:

In the absence of argument, I do not accept that the exercise of determining whether a managerial decision is "reasonable" and "taken in a reasonable way" is so like an exercise of discretion that an appellant seeking to reverse the decision by a tribunal of first instance, should be required to meet the standard set by the principles in *House v The King* at 505 per Dixon, Evatt and McTiernan JJ; compare *Macauslane v Fisher Paykel Finance Pty Ltd* (a "reasonable notice" case). However, the exercise of assessing "reasonableness" for the purposes of s 32(5)(a) of the Act, is evaluative as well as judgmental. There is room for difference of opinion. The judicial officer dealing with the matter at first instance should be allowed a matter of latitude; compare *IOOF Building Society Pty Ltd v Foxeden Pty Ltd* at 554 to 556 a "reasonable notice" case. (citations omitted)¹⁰⁶

[114] The grounds asserted by the Appellant amount to nothing more than a re-argument of the matters raised. It is a presentation of a series of pieces of the evidence with a bald argument that the Appellant's evidence should have been preferred. There was evidence to support the finding of the Commissioner and no error has been demonstrated.

¹⁰⁴ *Neale v Workers' Compensation Regulator* [2023] QIRC 009.

¹⁰⁵ TR1-70, LL15-16.

¹⁰⁶ *Alex Sabo AND Q-COMP (C2010/46) - Decision* <http://www.qirc.qld.gov.au> [21].

[115] Section 561(3) of the WCR Act defines the scope of the proceedings, which are to be "by way of rehearing on the evidence and proceedings before the ... industrial commission, unless the Court orders further evidence be heard". Such a rehearing on the record is to be determined in the manner set out by the High Court in *Fox v Percy*.¹⁰⁷

[116] While the Appellant need not demonstrate an error of law in the Commission's reasoning, he must nonetheless demonstrate an error (or errors) of a distinct kind.

[117] Mere differences of opinion do not found an appeal. Where the Commission has made a finding reasonably open to it, this Court ought not, without more, disturb such a finding, given that it is necessarily at a disadvantage in doing so.¹⁰⁸

[118] After considering the complaints raised, the Commissioner took a different view of the evidence and dealt with each and every one of the stressors relied on by the Appellant and determined that the management action was conducted in a reasonable way.

[119] The Appellant has not identified any error in the Commissioner's reasoning process to justify any valid ground of appeal. The appeal should be dismissed.

Order

1. The appeal is dismissed.

¹⁰⁷ (2003) 214 CLR 118, [22]-[24]. See also *Davis v Blackwood* [2014] ICQ 9; *Davidson v Blackwood* [2014] ICQ 8.

¹⁰⁸ *Mater Misericordiae Health Service Brisbane Ltd v Q-Comp* (2005) 179 QGIG 144 at 145.